

Dr. Nirmal Kumar v. PVVNL

High Court of Judicature at Allahabad · Division Bench · 7 August 2009 · WRIT - C No. 40400 of 2009 · **Writ dismissed; petitioner relegated to Section 127 appeal.**

HEADNOTE

Writ against rejection of a representation on an electricity assessment was not entertained. Section 127 of the Electricity Act, 2003 supplies a statutory appeal in which Supply Code and hearing objections can be raised. The petition was dismissed, with any appeal filed as indicated to be considered on merits in accordance with law.

FACTUAL SUMMARY

Dr. Nirmal Kumar, a consumer of Paschimanchal Vidyut Vitran Nigam Ltd., sought quashing of the 4 May 2009 order rejecting his representation against an electricity assessment. In Writ Petition No. 18843 of 2008 the Court had directed the authority to decide his objection on deposit of 50% of the amount under citation. After deposit the objection was rejected. He alleged that Clauses 6.8 and 8.1 of the U.P. Electricity Supply Code, 2005 were not considered and that no proper opportunity of hearing was given.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

statutory appeal as alternative to writ against assessment

HOLDING

A writ challenging rejection of a representation against an electricity assessment will not be entertained where Section 127 of the Electricity Act, 2003 gives a statutory appeal; issues including alleged non-consideration of U.P. Electricity Supply Code, 2005 Clauses 6.8 and 8.1 and want of opportunity can be raised in that appeal. Counsel stated an appeal would be filed within three weeks; the Court directed that if an appeal is filed within three days it shall be considered on merits in accordance with law. The writ petition was dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 4 MAY 2009 REJECTION CONSIDERED CLAUSES 6.8 AND 8.1 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Left to the Section 127 appeal. ¶ 1

NOT DECIDED — WHETHER PROPER OPPORTUNITY OF HEARING WAS GIVEN BEFORE DECIDING THE OBJECTION

Left to the Section 127 appeal. ¶ 1

NOT DECIDED — MERITS OF THE ASSESSMENT

¶ 1